

2:00 PM LINE 8

25-CIV-08222

ANGIE M. CHRISTENSEN VS. CITY OF BELMONT

ANGIE M. CHRISTENSEN
CITY OF BELMONT

PRO SE
ANA SANDERSON

Defendant's Motion to Strike Portions of Plaintiff's Complaint

TENTATIVE RULING:

See Line 9. If plaintiff appears to contest the tentative ruling, or at a continued hearing on October 21, 2026 at 2:00 p.m., in Department 28, the court will issue the following tentative ruling:

Defendant City of Belmont's Motion to Strike Portions of plaintiff Angie M. Christensen's Complaint is **DENIED AS MOOT**.

2:00 PM LINE 9

25-CIV-08222

ANGIE M. CHRISTENSEN VS. CITY OF BELMONT

ANGIE M. CHRISTENSEN
CITY OF BELMONT

PRO SE
ANA SANDERSON

Defendant's Demurrer to Plaintiff's Complaint

TENTATIVE RULING:

As a preliminary matter, there is no indication that defendant City of Belmont gave proper notice of the hearing date or location to plaintiff Angie M. Christensen. (See Cal. Rules of Court, rules 3.1110(b)(1).) The notice states that the hearing will take place in Department 19 on September 21, 2026. This was changed by the clerk's office upon filing to Department 28 and September 23, 2026. No proof of service of the amended hearing date and location has been filed. Accordingly, there is no indication that plaintiff Angie M. Christensen has received proper notice of the hearing, and a "court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question." (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205.)

Counsel for defendant City of Belmont is ordered to appear in Department 28 (in person or by Zoom) on September 23, 2026 at 2:00 p.m. to advise the court whether notice of the changed hearing date and location was served on plaintiff.

Unless defendant demonstrates that notice of the correct date and location of the hearing was served, or plaintiff appears to contest the tentative ruling, defendant's Demurrer to plaintiff's Complaint is **CONTINUED** to October 21, 2026 at 2:00 p.m. in Department 28, 9800 No. Humboldt St., Courtroom I, San Mateo, California 94401. **IF THE HEARING IS CONTINUED, DEFENDANT'S COUNSEL IS ORDERED TO GIVE NOTICE TO PLAINTIFF OF THE NEW HEARING DATE, AND TO FILE PROOF OF SERVICE OF SUCH NOTICE.**

Defendant's request for judicial notice (RJN) is **GRANTED**.

* * *

Notwithstanding that this hearing may be continued and that plaintiff has not filed an opposition, given that it appears that plaintiff failed to timely present a government claim, the court will issue the following tentative ruling.

"Public entities are protected by sovereign immunity for injuries arising from their acts or omissions, except as provided in the [Government Claims] Act or other statutes." (*Lowry v. Port San Luis Harbor Dist.* (2020) 56 Cal.App.5th 211, 218; see Gov. Code, § 815.) All claims for money or damages against local public entities must be presented in compliance with the
